

		The Court ORDERS Defendants Shelley M. Serna and Manuel T. Villagrana II to turn over to Plaintiff the Vehicle which is believed to be located at Extra Space Storage, Space Number J373, at 15875 Laguna Canyon Rd., Irvine CA 92618. The failure to turn over the Vehicle to Plaintiff may subject Defendants to being held in contempt of court. The Court waives the requirement for Plaintiff to post an undertaking since the amount owed is higher than the estimated value of the Vehicle. Defendants' re-delivery bond shall be \$95,000. Moving Party is to give notice.
58	Iwanaga vs. Global Financial Data Incorporated 19-01094012	Motion for Pretrial Determination of Admissibility of Evidence Defendant and Cross-Complainant Global Financial Data Incorporated ("GFD"), Defendant Michelle Huff Kangas, and Defendant Bryan Taylor's motion for an order to exclude evidence of Kangas's alleged comments about her criminal case or conviction for any purpose is DENIED. "Except as otherwise provided by statute, all relevant evidence is admissible." (Evid. Code, § 351.) Relevant evidence is that which has "any tendency in reason to prove or disprove any disputed fact that is of consequence to the determination of the action." (Evid. Code, § 210.) Defendants contend Kangas's alleged comments about her criminal case and conviction are irrelevant or marginally because the comments were not directed at Plaintiffs and that any alleged harassment was not based on sex. Plaintiffs Kevin Iwanaga, Lindsay Amendola, and Pierre Gendreau allege they were subjected to a sexually hostile work environment in violation of the California Fair Employment and Housing Act ("FEHA"). FEHA "recognize[s] two theories of liability for sexual harassment claims ... '... quid pro quo harassment, where a term of employment is conditioned upon submission to unwelcome sexual advances ... [and] hostile work environment, where the harassment is sufficiently pervasive so as to alter the conditions of employment and create an abusive work environment.' " (<i>Herberg v. California Institute of the Arts</i> (2002) 101 Cal.App.4th 142, 149; <i>Hughes v. Pair</i> (2009) 46 Cal.4th 1035, 1043.) "[A] hostile work environment sexual harassment claim requires a plaintiff employee to show she was subjected to sexual advances, conduct, or comments that were (1) unwelcome [citation]; (2) because of sex [citation]; and (3) sufficiently severe or pervasive to alter the conditions of her employment and create an abusive work environment [citations]. In addition, she must establish the offending conduct was imputable to her employer." (<i>Lyle v. Warner Brothers Television Productions</i> (2006) 38 Cal.4th 264, 279.) "To plead a cause of action for [hostile work environment] sexual harassment, it is only necessary to show that gender is a substantial factor in the discrimination, and that if the plaintiff had been a man she would not have been treated in the same manner. Accordingly, it is the disparate treatment of an employee on the basis of sex-not the mere discussion of sex or use of vulgar language-that is the essence of a sexual harassment claim." (<i>Id.</i> at p. 280 [internal quotation marks and citations omitted].) " "[W]hether an environment is 'hostile' or 'abusive' can be determined only by looking at all the circumstances [including] the frequency of the

		discriminatory conduct; its severity; whether it is physically threatening or humiliating, or a mere offensive utterance; and whether it unreasonably interferes with an employee's work performance.” [Citation.]” [Citation.]” (<i>Lyle, supra</i>, 38 Cal.4th at p. 283.) Sexual conduct that involves or is aimed at persons other than the plaintiff is considered less offensive and severe than conduct that is directed at the plaintiff. (See <i>Gleason v. Mesirow Financial Inc.</i> (7th Cir.1997) 118 F.3d1134, 1144 [“the impact of ‘second-hand harassment’ is obviously not as great as the impact of harassment directed at the plaintiff”]; <i>Black v. Zaring Homes, Inc.</i> (6th Cir.1997) 104 F.3d 822, 826 [fact that most comments were not directed at the plaintiff weakened her harassment claim]; <i>Jackson v. Racine County</i> (E.D.Wis.2005) 2005 WL 2291025, *7 [comments made to the plaintiffs about the appearance of other female employees bear less weight than the comments directed toward the plaintiffs themselves].) A hostile work environment sexual harassment claim by a plaintiff who was not personally subjected to offensive remarks and touchings requires ‘an even higher showing’ than a claim by one who had been sexually harassed without suffering tangible job detriment: such a plaintiff must ‘establish that the sexually harassing conduct permeated [her] direct work environment.’ (<i>Fisher, supra</i>, 214 Cal.App.3d at p. 610, 262 Cal.Rptr. 842.)” (<i>Lyle, supra</i>, 38 Cal.4th at p. 284–285.) “[A] hostile work environment sexual harassment claim is not established where a supervisor or co-worker simply uses crude or inappropriate language in front of employees or draws a vulgar picture, without directing sexual innuendos or gender-related language toward a plaintiff” (<i>Id.</i> at p. 282.) In <i>Lyle</i>, a female writers’ assistant sued three male writers and the entities involved in the production of the television show <i>Friends</i> for hostile work environment sexual harassment. The plaintiff testified that no one in the workplace ever said anything sexually offensive about her directly to her, asked her on a date, propositioned her, demanded sexual favors, or physically threatened her. (<i>Lyle, supra</i>, 38 Cal.4th at p. 275.) However, Lyle complained that a number of sexually offensive acts occurred in the workplace, including the writers talking about their sexual preferences and experiences, creating sexual images in a “coloring book” during meetings and leaving the book around the workplace, making masturbatory gestures, and making offensive sexual comments about two of the actresses on the show. (<i>Id.</i>) The California Supreme Court concluded that the conduct in Lyle's workplace did not amount to hostile environment sexual harassment. The court held, “Based on the totality of the undisputed circumstances, particularly the fact the <i>Friends</i> production was a creative workplace focused on generating scripts for an adult-oriented comedy show featuring sexual themes, we find no reasonable trier of fact could conclude such language constituted harassment directed at plaintiff because of her sex within the meaning of the FEHA. Furthermore, to the extent triable issues of fact exist as to whether certain offensive comments were made about women other than plaintiff because of their sex, we find no reasonable trier of fact could conclude these particular comments were severe enough or sufficiently pervasive to create a work environment that was hostile or abusive to plaintiff in violation of the FEHA.” (<i>Lyle, supra</i>, 38 Cal.4th at p. 272.) “FEHA’s prohibitions are not a ‘civility code’ and are not designed to rid the workplace of vulgarity. [Citations.] To be actionable, the conduct must be extreme, but there is no requirement that the employee endure sexual harassment until his or her psychological well-being is so spent that the employee requires psychiatric assistance.” (<i>Sheffield v. Los Angeles County Dept. of Social Services</i> (2003) 109 Cal.App.4th 153, 161–162.)
--	--	---

		Here, Defendant Michelle Huff Kangas allegedly made comments about her criminal conviction for sexual offenses in meetings, discussing the case in graphic detail. (Simon Decl. [ROA 1143] ¶ 6, Exh. 5, Iwanaga Depo. Tr. at 167:1-22; Simon Decl. ¶ 7, Exh. 6, Amendola Depo. Tr. at 572:21-574:9, 574:21-575:13; Simon Decl. ¶ 8, Exh. 7, Gendreau Depo. Tr. at 129:2-9.) Kangas also spoke to Plaintiffs individually about the details of her criminal case. (Simon Decl. [ROA 1143] ¶ 5, Exh. 4, Iwanaga Depo. Tr. at 532:2-12; Bordin-Wosk Decl. [ROA 1149] ¶ 6, Exh. 5, Gendreau Depo. Tr. at 188:14-189:4.) Additionally, Kangas allegedly told offensive jokes and committed harassing acts directed at Plaintiffs. (Simon Decl. [ROA 1143] ¶ 8, Exh. 7, Gendreau Depo. Tr. at 185:1-11; Simon Decl. ¶ 7, Exh. 6, Amendola Depo. Tr. at 593:2-15; Bordin-Wosk Decl. [ROA 1149] ¶ 2, Exh. 1, Iwanaga Depo. Tr. p. 1, lns. 7-15; p. 4 ln. 24 to p. 5 ln. 16; Bordin-Wosk Decl. ¶ 3, Exh. 2, Iwanaga Depo. Tr. at 181:5-182:15; Bordin-Wosk Decl. ¶ 6, Exh. 5, Gendreau Depo. Tr. at 198:5-25, 202:10-211:10; Bordin-Wosk Decl. ¶ 8, Exh. 7, Gerrells Depo. Tr. at 48:18-49:12.) Unlike <i>Lyle</i>, nothing about the nature of the work at GFD put the employees in the position of discussing matters that were sexual in nature. “ “[T]he objective severity of harassment should be judged from the perspective of a reasonable person in the plaintiff’s position, considering ‘all the circumstances.’ [Citation.] ... [T]hat inquiry requires careful consideration of the social context in which particular behavior occurs and is experienced by its target The real social impact of workplace behavior often depends on a constellation of surrounding circumstances, expectations, and relationships which are not fully captured by a simple recitation of the words used or the physical acts performed. Common sense, and an appropriate sensibility to social context, will enable courts and juries to distinguish between simple teasing and roughhousing ... and conduct which a reasonable person in the plaintiff’s position would find severely hostile or abusive.” [Citation.]’ ” (<i>Id.</i> at p. 283.) Although Kangas’s alleged criminal case comments did not involve and were not directed at Plaintiffs, the remarks were sexual in nature and contributed to the overall sexually charged atmosphere in the workplace. In contrast to <i>Lyle</i>, Plaintiffs have alleged harassment that was directed at them personally. On the record before the court, a reasonable trier of fact could conclude that the sexually harassing conduct permeated the GFD work environment. Kangas’s criminal case comments are relevant. A trial court may exclude otherwise relevant evidence when its probative value is substantially outweighed by concerns of undue prejudice, confusion, or consumption of time. (Evid. Code, § 352; <i>People v. Riggs</i> (2008) 44 Cal.4th 248, 290.) “The prejudice which exclusion of evidence under Evidence Code section 352 is designed to avoid is not the prejudice or damage to a defense that naturally flows from relevant, highly probative evidence. ‘[A]ll evidence which tends to prove guilt is prejudicial or damaging to the defendant’s case. The stronger the evidence, the more it is “prejudicial.” The “prejudice” referred to in Evidence Code section 352 applies to evidence which uniquely tends to evoke an emotional bias against the defendant as an individual and which has very little effect on the issues. In applying [Evidence Code] section 352, “prejudicial” is not synonymous with “damaging.” ’ [Citation.]” (<i>People v. Karis</i> (1988) 46 Cal.3d 612, 638.) “ “In other words, evidence should be excluded as unduly prejudicial when it is of such nature as to inflame the emotions of the jury, motivating them to use the information, not to logically evaluate the point upon which it is relevant, but to reward or punish one side because of the jurors’ emotional reaction. In such a circumstance, the evidence is unduly prejudicial
--	--	---

		because of the substantial likelihood the jury will use it for an illegitimate purpose.” ’ ’ (People v. Scott (2011) 52 Cal.4th 452, 491.) In striking the balance between the probative and the unduly prejudicial, the court “should allow evidence and argument on emotional though relevant subjects that could provide legitimate reasons to sway the jury.... On the other hand, irrelevant information or inflammatory rhetoric that diverts the jury’s attention from its proper role or invites an irrational, purely subjective response should be curtailed.” (People v. Haskett (1982) 30 Cal.3d 841, 864.) Here, Kangas’s criminal case comments are relevant and should not be excluded. (People v. Lamb (2024) 16 Cal.5th 400, 425 [“Evidence Code section 352 speaks in terms of <i>undue</i> prejudice. Unless the dangers of undue prejudice, confusion, or time consumption substantially outweigh the probative value of relevant evidence, a[n] [Evidence Code] section 352 objection should fail.”] [internal quotation marks and citations omitted].) The court reserves its discretion to include a limiting instruction. Plaintiffs to give notice.
59	Holler vs The Horizons Community Association 21-01222398	Motion for Summary Judgment and/or Adjudication CONTINUED TO JUNE 4, 2026, AT 10:00 AM
60	Hernandez vs. Sol Acceptance, LLC 22-01277715	Motion for Summary Judgment and/or Adjudication OFF CALENDAR due to the filing of the Notice of Settlement on 5/21/2026, ROA 222